

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANNMARIE GRANT and JOHN MARSHALL,

Plaintiffs,

- against -

THE CITY OF NEW YORK, KISHAR SURAJBALI,
and NEW YORK CITY HOUSING AUTHORITY,

Defendants.
-----X

Index No.

Plaintiffs designate
New York County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiffs reside at:

ANNMARIE GRANT
335 East 112th Street, #2D
New York, NY 10029

County of New York

JOHN MARSHALL
335 East 112th Street, #2D
New York, NY 10029

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 26, 2017

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
ANNMARIE GRANT & JOHN MARSHALL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
KISHAR SURAJBALI, c/o: The Housing Bureau PSA 5 Precinct
NYCHA: 250 Broadway, New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANNMARIE GRANT and JOHN MARSHALL,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, KISHAR SURAJBALI,
and NEW YORK CITY HOUSING AUTHORITY,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF ANNMARIE GRANT

1. That, on May 11, 2016, the plaintiff, **ANNMARIE GRANT**, was a resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on May 11, 2016 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on May 11, 2016 the defendant, **NEW YORK CITY HOUSING AUTHORITY**, (hereinafter referred to as "**NYCHA**") was and still is a body corporate and politic, duly organized and existing under and by virtue of the laws of the State of New York.

4. That, at all times hereinafter mentioned, and on May 11, 2016 the defendant, **KISHAR SURAJBALI** (hereinafter referred to as "**SURAJBALI**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **ANNMARIE GRANT**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on August 3, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **ANNMARIE GRANT**, shall testify at an oral examination pursuant to the General Municipal Law at a future agreed upon date; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That, the plaintiff, **ANNMARIE GRANT**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **NYCHA**; plaintiff's Notice of Claim was served on August 3, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, no oral examination was requested of the plaintiff, **ANNMARIE GRANT**, by the defendant, **NYCHA**; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having

been caused to accrue.

7. That, on May 11, 2016, the plaintiff, **ANNMARIE GRANT** was home, that being apartment 2D of 335 East 112th Street, in the County of New York, City and State of New York.

8. That, various representatives of the landlord had come to the plaintiff, **ANNMARIE GRANT's**, apartment to assess water damage previously sustained.

9. That, various police officers and/or other agents, servants and/or employees of the defendant and/or defendants herein, had also approached the plaintiff, **ANNMARIE GRANT**, who was sitting at a table, in her aforementioned apartment.

10. That, the defendants, their agents, servants and/or employees had threatened the plaintiff, **ANNMARIE GRANT**, and had used foul language against her.

11. That, the defendants, their agents, servants, and/or employees had handcuffed and otherwise prevented the plaintiff, **ANNMARIE GRANT**, from moving while she was in her aforementioned apartment.

12. That, the defendants, their agents, servants, and/or employees had handcuffed and otherwise prevented the plaintiff, **ANNMARIE GRANT**, from moving while she was in her aforementioned apartment.

13. That, the defendants, their agents, servants, and/or employees had used a taser on the plaintiff, **ANNMARIE GRANT**, which caused her to sustain serious and severe personal injuries and pain

and suffering.

14. That, an ambulance came to the scene occurrence and had taken the plaintiff, **ANNMARIE GRANT**, to the hospital for medical treatment.

15. That, the plaintiff, **ANNMARIE GRANT**, was not charged with a crime, yet was unlawfully detained/arrested/imprisoned.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, **ANNMARIE GRANT**

16. That, the plaintiff, **ANNMARIE GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 15 with the same force and effect as if hereinafter more fully set forth at length herein.

17. That, on May 11, 2016 the plaintiff, **ANNMARIE GRANT** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

18. That, the plaintiff, **ANNMARIE GRANT**, was assaulted/battered without justification and without cause and without excuse.

19. That, the assault/battery took place in her apartment, premises known as 2D of 335 East 112th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **ANNMARIE GRANT** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

20. That, at all times hereinafter mentioned and on May 11, 2016 and for sometime prior thereto, defendant, **SURAJBALI**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

21. That, the aforementioned assault and battery of the plaintiff, **ANNMARIE GRANT**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY** and/or defendant, **NYCHA**.

22. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

23. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

24. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ANNMARIE GRANT

25. That, the plaintiff, ANNMARIE GRANT, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 24 with the same force and effect as if hereinafter more fully set forth at length herein.

26. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, THE CITY, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, THE CITY, as well as the defendant, NYCHA, who provided false and/or inaccurate information to the defendant, THE CITY.

27. That the defendant, NYCHA, was additionally negligent, reckless and careless in the providing false and/or inaccurate information to the defendant, THE CITY, which served as a basis for the claims herein.

28. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendants, were additionally committed due to the negligence, recklessness and carelessness of the aforementioned police officers, and/or other agents, servants and/or employees of the defendant, NYCHA.

29. That, the defendant, NYCHA, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various employees, which served

as a basis for the claims herein.

30. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

31. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ANNMARIE GRANT

33. That, the plaintiff, **ANNMARIE GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 32 with the same force and effect as if hereinafter more fully set forth at length herein.

34. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers,

agents, servants and/or other employees of the defendant, **THE CITY**.

35. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

36. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SURAJBALI**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SURAJBALI**, who was employed by the defendant, **THE CITY**.

38. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

40. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ANNMARIE GRANT

41. That the plaintiff, **ANNMARIE GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, on May 11, 2016, the plaintiff, **ANNMARIE GRANT**, was caused to be falsely arrested and falsely imprisoned without probable cause.

43. That, the plaintiff, **ANNMARIE GRANT**, was arrested without an arrest warrant.

44. That, the false arrest/false imprisonment took place in premises known as 2D, 335 East 112th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **ANNMARIE GRANT**, was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ANNMARIE GRANT**, was carried out by

police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ANNMARIE GRANT**, was carried out by defendant, **SURAJBALI**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

47. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

48. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

49. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ANNMARIE GRANT

50. The plaintiff, **ANNMARIE GRANT**, repeats, reiterates,

and realleges, each and every allegation as set forth in paragraphs 1 through 49, with the same force and effect as if hereinafter more fully set forth at length herein.

51. That the plaintiff, **ANNMARIE GRANT**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time she was assaulted and battered, excessive force was used against her; she was deprived of her constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

52. That at all times hereinafter mentioned, the defendant, **SURAJBALI**, was employed in her respective capacity by the defendant, **THE CITY**, and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

53. Defendant, **SURAJBALI**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of

their employees or agents.

54. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **ANNMARIE GRANT**, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **ANNMARIE GRANT** to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **ANNMARIE GRANT**, to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **ANNMARIE GRANT**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

55. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

56. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

57. That the detaining of plaintiff, **ANNMARIE GRANT** without probable cause or justification was the result of customs

and/or policies adopted by the defendant, **THE CITY**.

58. That the deprivation of plaintiff, **ANNMARIE GRANT's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

59. That the deprivation of plaintiff, **ANNMARIE GRANT's** Constitutional Rights was the result of defendant, **SURAJBALI's** and/or other agents, servants and/or employees of the defendants use of excessive force.

60. That the customs and/or policies adopted by the defendant, **THE CITY**, exhibited a deliberate indifference to the Constitutional rights of plaintiff, **ANNMARIE GRANT**.

61. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the assault and battery, on the plaintiff, **ANNMARIE GRANT**, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **ANNMARIE GRANT** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

62. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and

advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

63. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

64. That, by reason of the foregoing, the plaintiff, **ANNMARIE GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF JOHN MARSHALL

65. That, the plaintiff, **JOHN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 64 with the same force and effect as if hereinafter more fully set forth at length herein.

66. That, and on May 11, 2016, the plaintiff, **JOHN MARSHALL**, was and still is a resident of the County of New York, City and State of New York.

67. That, at all times hereinafter mentioned, and on May 11, 2016 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

68. That, at all times hereinafter mentioned, and on

May 11, 2016 the defendant, **NEW YORK CITY HOUSING AUTHORITY**, (hereinafter referred to as "**NYCHA**") was and still is a body corporate and politic, duly organized and existing under and by virtue of the laws of the State of New York.

69. That, at all times hereinafter mentioned, and on May 11, 2016 the defendant, **SURAJBALI**, was and still is a resident of the City and State of New York.

70. That, the plaintiff, **JOHN MARSHALL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on August 3, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **JOHN MARSHALL**, shall testify at an oral examination pursuant to the General Municipal Law at a future agreed upon date; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

71. That, the plaintiff, **JOHN MARSHALL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **NYCHA**; plaintiff's Notice of Claim was served on August 3, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, no oral examination was requested of

the plaintiff, **JOHN MARSHALL**, by the defendant, **NYCHA**; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

72. That, on May 11, 2016 the plaintiff, **JOHN MARSHALL**, was home in the premises known as 2D, 335 East 112th Street, in the County of New York, City and State of New York.

73. That the plaintiff, **JOHN MARSHALL**, was falsely arrested, falsely imprisoned, assaulted/battered and was victim of excessive force by the defendants, their agents, servants, and/or employees herein.

74. That, the plaintiff, **JOHN MARSHALL**, had returned to his aforementioned apartment and witnessed the defendants, their agents, servants, and/or employees attacking his mother, the co-plaintiff, **ANNMARIE GRANT**.

75. That, the defendants, their agents, servants, and/or employees would not allow the plaintiff, **JOHN MARSHALL**, into his apartment.

76. That, the defendants, their agents, servants, and/or employees had used foul language against the plaintiff, **JOHN MARSHALL**.

77. That, the defendants, their agents, servants, and/or employees had handcuffed and shackled the plaintiff, **JOHN MARSHALL**.

78. That, the defendants, their agents, servants, and/or employees had arrested the plaintiff, **JOHN MARSHALL**, for no reason

and without reason, cause, and without probable cause.

79. That, the aforementioned agents, servants, and/or employees had placed the plaintiff, JOHN MARSHALL, in handcuffs outside the aforementioned premises, and started to strike, beat and injure the plaintiff, JOHN MARSHALL, for no reason whatsoever.

80. That the plaintiff, JOHN MARSHALL, was thereafter taken to the PSA 5, where he was held against his will for a long and unreasonable time, by the defendants, their agents, servants, and/or employees.

81. That the plaintiff, JOHN MARSHALL, was never told about any charges placed against him.

82. The plaintiff, JOHN MARSHALL, was taken to Central Booking.

83. The plaintiff, JOHN MARSHALL, was seen by a judge.

84. The plaintiff, JOHN MARSHALL, was injured as a result of the foregoing.

85. The plaintiff, JOHN MARSHALL, was caused to go to Criminal Court on several occasions.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JOHN MARSHALL

86. That, the plaintiff, JOHN MARSHALL, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 85 with the same force and effect as if hereinafter more fully set forth at length herein.

87. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**, as well as the defendant, **NYCHA**, who provided false and/or inaccurate information to the defendant, **THE CITY**.

88. That the defendant, **NYCHA**, was additionally negligent, reckless and careless in the providing false and/or inaccurate information to the defendant, **THE CITY**, which served as a basis for the claims herein.

89. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendants, were additionally committed due to the negligence, recklessness and carelessness of the aforementioned police officers, and/or other agents, servants and/or employees of the defendant, **NYCHA**.

90. That, the defendant, **NYCHA**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various employees, which served as a basis for the claims herein.

91. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and,

upon information and belief, his injuries are permanent in nature and effect.

92. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

93. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JOHN MARSHALL

94. That, the plaintiff, **JOHN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 93 with the same force and effect as if hereinafter more fully set forth at length herein.

95. That, on May 11, 2016 the plaintiff, **JOHN MARSHALL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

96. That, the plaintiff, **JOHN MARSHALL**, was assaulted/battered without justification and without cause and without excuse.

97. That, the assault/battery took place in her apartment, premises known as 2D of 335 East 112th Street, in the County of New York, City and State of New York, and other locations

wherein the plaintiff, **JOHN MARSHALL**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

98. That, at all times hereinafter mentioned and on May 11, 2016 and for sometime prior thereto, defendant, **SURAJBALI**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

99. That, the aforementioned assault and battery of the plaintiff, **JOHN MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY** and/or defendant, **NYCHA**.

100. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

101. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

102. That, by reason of the foregoing, the plaintiff, JOHN MARSHALL, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JOHN MARSHALL

103. That, the plaintiff, JOHN MARSHALL, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 102 with the same force and effect as if hereinafter more fully set forth at length herein.

104. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, THE CITY, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, THE CITY.

105. That the defendant, THE CITY, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, THE CITY.

106. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, SURAJBALI, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, THE CITY.

107. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SURAJBALI**, who was employed by the defendant, **THE CITY**.

108. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

109. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

110. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JOHN MARSHALL

111. That the plaintiff, **JOHN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 110 with the same force and effect as if

hereinafter more fully set forth at length herein.

112. That, on May 11, 2016, the plaintiff, **JOHN MARSHALL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

113. That, the plaintiff, **JOHN MARSHALL**, was arrested without an arrest warrant.

114. That, the false arrest/false imprisonment took place in premises known as 2D, 335 East 112th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **JOHN MARSHALL**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

115. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JOHN MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

116. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JOHN MARSHALL**, was carried out by defendant, **SURAJBALI**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

117. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

118. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

119. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JOHN MARSHALL

120. The plaintiff, **JOHN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 119, with the same force and effect as if hereinafter more fully set forth at length herein.

121. That the plaintiff, **JOHN MARSHALL**, did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the

Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

122. That at all times hereinafter mentioned, the defendant, **SURAJBALI**, was employed in his respective capacity by the defendant, **THE CITY**, and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

123. Defendant, **SURAJBALI**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY**, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

124. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **JOHN MARSHALL**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **JOHN MARSHALL** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JOHN**

MARSHALL, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, JOHN MARSHALL, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

125. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

126. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, THE CITY's, custom and/or policy of arresting individuals without probable cause.

127. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, THE CITY's, custom and/or policy of arresting minorities without probable cause.

128. That the deprivation of plaintiff, JOHN MARSHALL Constitutional Rights was the result of the defendant, THE CITY's, custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

129. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, THE CITY.

130. That the detaining of plaintiff, JOHN MARSHALL

without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

131. That the deprivation of plaintiff, **JOHN MARSHALL** Constitutional Rights was the result of the defendant, **SURAJBALI'S** arrest of the plaintiff, **JOHN MARSHALL**, without probable cause.

132. That the deprivation of plaintiff, **JOHN MARSHALL'S** Constitutional Rights was a result of the defendant, **THE CITY'S**, custom and policy in failing to discipline officers for the use of excessive force.

133. That the deprivation of plaintiff, **JOHN MARSHALL'S** Constitutional Rights was the result of **SURAJBALI'S** use of excessive force.

134. That the customs and/or policies adopted by the defendant, **THE CITY**, exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JOHN MARSHALL**.

135. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JOHN MARSHALL** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C.

Section 1983.

136. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

137. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

138. That, by reason of the foregoing, the plaintiff, **JOHN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **ANNMARIE GRANT**, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; and plaintiff, **JOHN MARSHALL** demands judgment against the defendants, on the Sixth, Seventh, Eighth, Ninth and Tenth causes of action in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
July 26, 2017

Yours, etc.

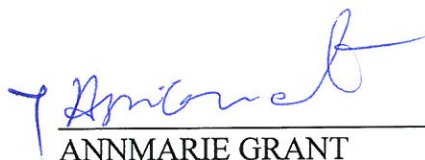
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs,
ANNMARIE GRANT AND JOHN MARSHALL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

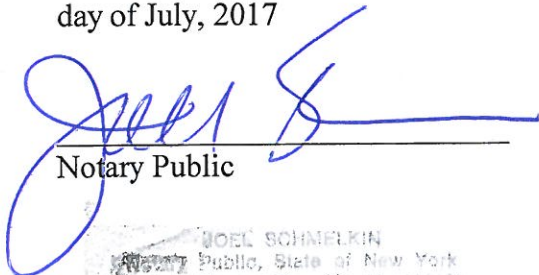
ANNMARIE GRANT being duly sworn depose and say:

I am the plaintiff in this action. I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



ANNMARIE GRANT

Sworn to before me this 26
day of July, 2017



Notary Public

JOEL SCHMELKIN
Notary Public, State of New York
Jewel Mt Nassau Co. - No. 30-478307b
Commission Expires January 31, 2018

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

JOHN MARSHALL being duly sworn depose and say:

I am the plaintiff in this action. I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.

John Marshall
JOHN MARSHALL

Sworn to before me this 26
day of July, 2017

John Schimel
Notary Public

JOHN SCHIMEL
Notary Public, State of New York
Qual. in Nassau Co. - No. 80-4793275
Commission Expires January 31, 2018

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ANNMARIE GRANT and JOHN MARSHALL,

Plaintiffs,

-against-

THE CITY OF NEW YORK, KISHAR SURAJBALI,
NEW YORK CITY HOUSING AUTHORITY,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

AnnMarie Grant and John Marshall

Office and Post Office Address, Telephone

30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: July 26, 2017

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐
NOTICE OF
ENTRY
that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐
NOTICE OF
SETTLEMENT
that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

33 of 33

Office and Post Office Address, Telephone